

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
ERIC ROBERT KLING) Docket No: MH 03-0304
License No. 068-0000284)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, through State Prosecuting Attorney, Edward G. Adrian, and Respondent, Eric Robert Kling, LCMHC, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Fraudulent or deceptive procurement or use of a license is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129a(a)(1).
3. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct upon which the Board can base disciplinary action. 26 V.S.A. §3271(a)(3).
4. Failure to comply with the provisions of state statutes or rules governing the practice of the profession is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129a(a)(3).

Statement of Facts

5. The Respondent, Eric Robert Kling, is licensed in the State of Vermont as a Clinical Mental Health Counselor under License Number 068-0000284.
6. Respondent was originally licensed on September 26, 1996 and Respondent's license has a current expiration date of January 31, 2005.
7. On Respondent's renewal applications for the expiration dates of January 31, 2001 and January 31, 2003, the Respondent answered "No" on both applications to the

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Office of
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Montpelier, VT 05602

question of "Have you ever been convicted of a crime other than a minor traffic violation?"

8. Upon information and belief, the Respondent was convicted in Rockingham County Superior Court in New Hampshire of felony possession of narcotics in 1996.

9. According to certified court records, on April 4, 2001, Respondent was convicted in the Vermont District Court, Unit No. 2, Chittenden Circuit, Docket No. 1117-2-01 Cncr of DWI #1, a misdemeanor offense.

10. According to certified court records, on July 9, 2003, Respondent was convicted in the Vermont District Court, Unit No. 2, Chittenden Circuit, Docket No. 3449-6-03 Cncr of DWI #2, a misdemeanor offense.

11. The Respondent received a fine as a result of the DWI #1 conviction. For the DWI #2 conviction, the Respondent received a fine and a sentence of six to twelve months, all suspended except fifteen days and was placed on probation under standard and special conditions.

Charges

12. The acts, omissions and/or circumstances described above, constitute grounds for discipline because Respondent violated:

- i. 3 V.S.A. §129a(a)(1) (Fraudulent or deceptive procurement or use of a license); and
- ii. 26 V.S.A. §3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling); and
- iii. 3 V.S.A. §129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

Understandings

13. Respondent understands that the Allied Mental Health Practitioners Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.

14. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced his rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.

15. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

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16. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.

17. Respondent voluntarily waives his right to a contested hearing before the Allied Mental Health Practitioners Board.

18. Respondent agrees that the Order set forth may be entered by the Board.

ORDER

Based upon the stipulation above, it is **ORDERED AND ADJUDGED** by the Board of Allied Mental Health Practitioners as follows:

A. Respondent, by his acts as set forth above, has engaged in unprofessional conduct pursuant to, and in violation of:

- i. 3 V.S.A. §129a(a)(1) (Fraudulent or deceptive procurement or use of a license); and
- ii. 26 V.S.A. §3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling); and
- iii. 3 V.S.A. §129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

B. The Board of Allied Mental Health Practitioners hereby imposes an **ADMINISTRATIVE PENALTY OF \$2,000.00 (TWO THOUSAND DOLLARS)**. The Respondent must pay this penalty within a period of six (6) months from the date of entry of this order. Further, the Board hereby **CONDITIONS** the Respondent's license for a minimum period of **TWO (2) YEARS** commencing with the date of entry of this Stipulation and Consent Order. The conditions are as follows:

(1) Re-issue of License.

Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."

(2) Ethics Course.

Respondent shall, at his own expense, complete one (1) three credit college level ethics course. The course must be pre-approved by the Board. Respondent must submit written documentation (certificate of completion, etc.) to verify same to the satisfaction of the Board or its designee. Respondent shall complete this course within twelve (12) months of the date of entry of this Order.

(3) Completion of Drug and Alcohol Abuse Counseling and Treatment Plan.

Respondent shall enter into and continue drug and alcohol abuse counseling with a treating professional approved by the Board until the treating professional shall certify in

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writing to the Board that such counseling is no longer necessary. Respondent shall enter into and comply with the drug and alcohol abuse treatment plan approved by the Board and the treating professional.

(4) Notification to Treating Professional.

Respondent shall provide a copy of this Stipulation and Consent Order to his treating professional and cause his treating professional to inform the Board, in writing and on professional letterhead, of receipt of the Stipulation and Consent Order and the treating professional's ability to comply with the conditions related to treatment and with all other terms of this Consent Order.

(5) Reports from Treating Professional.

Respondent shall authorize and cause his treating professional to submit to the Board evidence of satisfactory progress with the treatment plan during the effective period of this Consent Order. These reports shall be submitted in writing on forms issued by the Board. The first report is due within thirty (30) days of the date of entry of this Consent Order and subsequent reports are due quarterly thereafter.

Respondent shall authorize his treating professional to provide all information requested by the Board, either orally or in writing, at any time during the period this Consent Order is in effect.

(6) Participation in Recovery Group/Education.

Respondent shall participate as recommended by his treating professional, in Narcotics and/or Alcoholics Anonymous meetings and/or other recovery group(s). Respondent shall also undertake any courses and/or readings suggested by the treating professional.

(7) Random Drug and Alcohol Testing.

Respondent shall submit to random drug and alcohol screenings at the direction of the treating professional. All testing shall be done on a random, unannounced basis and analyzed by a lab qualified to analyze samples for forensic purposes. All urine specimens collected for tests shall be collected in an observed setting. All screens shall be negative.

(8) Abstain from Alcohol and Drug Use.

Respondent shall abstain completely from the consumption or possession of alcohol and drugs with the exception of prescribed medications as outlined in paragraph B.(9) during the effective period of this Consent Order.

(9) Drug Use Exception.

Respondent shall not take controlled substances unless necessary. Respondent may take scheduled/controlled medications lawfully prescribed for a bona fide illness or condition by a physician, dentist, or nurse practitioner whose identity shall be made known to the Board in writing by Respondent within forty-eight (48) hours of the establishment of the practitioner/patient relationship. Respondent shall ensure that the physician, dentist or nurse practitioner informs the Board, in writing and on appropriate

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letterhead, of knowledge of Respondent's substance abuse issue(s) within one (1) week of entering into the practitioner/patient relationship. Respondent shall inform the Board in writing of all scheduled/controlled medications prescribed, including the name of the prescribing practitioner, within forty-eight (48) hours of receiving the prescription.

The Board or its designee may request at any time that the practitioner document the continued necessity for the prescribed scheduled/controlled medications if the term exceeds 14 days. This includes medications to be administered as necessary. It is not anticipated that Respondent would be prescribed scheduled/controlled medication, during the term of this Consent Order, for a period greater than 14 days, but if so, then the conditions herein may be revoked by the Board.

Respondent shall keep a written record of all medications taken, including over the counter drugs, and produce such record upon the request of the Board or its designee.

(10) Interview with the Board or its Designee.

Respondent shall appear in person for interviews with the Board or its designee upon request.

(11) Out of State Practice/Residence.

Before any out-of-state practice or residence can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board prior to Respondent leaving the State of Vermont. If Respondent fails to receive such approval before leaving the State, none of the time spent out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. The Board will approve out-of-state practice so long as the Respondent can still comply with the provisions of this Consent Order.

(12) Notification of Place of Employment/Personal Address/Telephone Number.

Within five (5) days of the date of entry of this Consent Order, Respondent shall notify the Board, in writing, of his current place of employment, personal address, and telephone number. Respondent shall further notify the Board, in writing, within forty-eight (48) hours of any change in employment, personal address, or telephone number.

(13) Notification to Other States.

In the event that the Respondent is licensed as a mental health counselor in any other state(s), he must inform the licensing board of the state(s) in which the Respondent is licensed of the conditional status of his Vermont license within thirty (30) days of the date of entry of this Order. If the Respondent fails to provide such notification, it will be considered a violation of this Order.

(14) License Renewal.

If the Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. In that situation, in order to continue to practice, the Respondent must timely apply for renewal, pay the applicable fee and demonstrate that he has otherwise complied with the requirements for license renewal.

(15) Release of Information Forms.

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In fulfilling the conditions of this Order which require the Respondent to authorize various persons to report information or to discuss the Respondent with the Board, the Respondent must execute a consent to disclose form which meets the requirements of 42 C.F.R. §2.31. The authorization must allow the information to also be provided to the Office of Professional Regulation investigators. Any revocation by the Respondent of such consent to disclosure during the term of this Order shall be considered a violation of this Order.

(16) Costs.

The Respondent shall bear all costs of complying with this Consent Order.

(17) Violation of this Order.

If the Respondent violates the terms of this Order in any respect, the Board, after giving the Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against the Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

(18) Completion of Conditional License Period.

After the conditional license period, the Respondent may petition the Board to remove any and all conditions on his license. The Respondent must present proof that he has fully complied with the terms of this Order. The Respondent must also present proof, to the satisfaction of the Board, of successful drug and alcohol abuse rehabilitation.

C. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 10/5/

By:

Edward G. Adrian
State Prosecuting Attorney

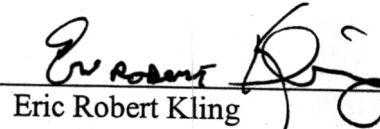
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ERIC ROBERT KLING
RESPONDENT

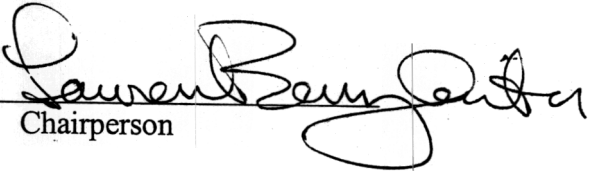
Dated: 09/22/04

By: 
Eric Robert Kling

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 10/21/04

By: 
Chairperson

Date of Entry: 10/22/04

mh.kling.stip

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SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:

**ERIC ROBERT KLING
License No. 068-0000284**

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Docket No: MH 03-0304

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following Charges against the Respondent, Eric Robert Kling, LCMHC:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
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Facts

5. The Respondent, Eric Robert Kling, is licensed in the State of Vermont as a Clinical Mental Health Counselor under License Number 068-0000284.
6. Respondent was originally licensed on September 26, 1996 and Respondent's license has a current expiration date of January 31, 2005.
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- ii. 26 V.S.A. §3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling); and
- iii. 3 V.S.A. §129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

WHEREFORE, the license of Eric Robert Kling should be revoked, suspended, reprimanded, conditioned or otherwise disciplined.

Dated at Montpelier, Vermont this 7th day of July 2004.

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SECRETARY OF STATE

By:

Edward G. Adrian
State Prosecuting Attorney